

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Plaintiff designates
Bronx County as the
place of trial

----- X
A.B., an infant by her mother and natural guardian
VICTORIA BUGGIE,

Plaintiff,

Basis of venue is
county of occurrence

-against-

SUMMONS

THE CITY OF NEW YORK and
NYPD OFFICER "JOHN" WILLIAMS, the first name
being fictitious,

Defendants.

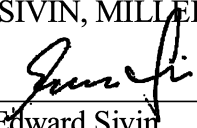
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 20, 2020

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By 
Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

-The City of New York, 100 Church Street, New York, NY 10007

-NYPD "John" Williams, the first name being fictitious: c/o NYPD 49th Precinct, 2121 Eastchester Rd. Bronx, NY 10461

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
A.B., an infant by her mother and natural guardian
VICTORIA BUGGIE,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK and
NYPD OFFICER "JOHN" WILLIAMS, the first name
being fictitious,

Defendants.

----- X

Plaintiff, by her attorneys Sivin, Miller & Roche, LLP, complaining of
defendants, alleges as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York
(hereinafter "the City") was and is a municipal corporation, organized and existing under and by
virtue of the laws of the State of New York.

2. That prior to the institution of this action and within ninety (90) days from the
dates when the causes of action accrued herein, a notice of claim and intention to sue was duly
served upon and filed with the defendants on behalf of plaintiffs; that this action was not
commenced until the expiration of thirty (30) days after such notice of claim and intention to sue
was presented and defendants have neglected and/or refused to make adjustment or payment
thereon, and this action is being commenced within one year and ninety days after the causes of
action accrued herein.

3. That at all times herein mentioned, the City operated, controlled, and
maintained a police force known as the New York Police Department (hereinafter "the NYPD").

4. That at all times herein mentioned, defendant NYPD Officer “John” Williams (hereinafter “Williams”), whose first name is fictitious as it is unknown to plaintiff, was and is employed as an officer with the NYPD, and was and is employed as a police officer with the NYPD’s 49th Precinct.

5. That at all times herein mentioned, Williams was acting within the course and scope of his employment as an officer with the NYPD.

6. That at all times herein mentioned, Williams was acting under color of state law.

7. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York’s Civil Practice Law & Rules § 1602 with respect to joint and several liability.

FACTS

8. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

9. That on or about September 16, 2019, at or around 1930 Bartow Avenue, Bronx, NY, members of the NYPD, including but not limited to Williams (hereinafter referred to collectively as “the officers”), without a warrant and without probable cause, and without otherwise being justified, and acting in concert with each other, physically seized A.B. and otherwise used force against A.B. that was excessive, unjustified, and unreasonable under the circumstances.

10. That included in the unjustified force against A.B. were the acts of forcibly pushing A.B., shooting a taser gun in A.B.’s back, and forcibly handcuffing A.B.

11. That the officers then arrested and imprisoned A.B. without a warrant and without probable cause or reasonable suspicion, and kept her handcuffed and confined at various locations, including inside an ambulance and a hospital.

12. That no criminal charges were filed against A.B. in connection with the aforementioned incident.

13. That the aforesaid actions by the officers were done intentionally and maliciously.

14. That Williams and each of the other officers observed the unconstitutional and illegal conduct of his fellow officers, had a reasonable opportunity to intervene to prevent and/or stop that conduct, and deliberately chose not to intervene.

15. That as a result of the aforementioned actions by the officers, A.B. sustained physical and psychological injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, was deprived of her liberty and freedom, was damaged in her reputation, and has been otherwise damaged.

16. That upon information and belief, prior to the events alleged herein Williams and the other officers had used excessive force against, falsely arrested and falsely imprisoned, and otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

17. That upon information and belief, prior to the events alleged herein the City and the NYPD knew that Williams and the other officers had used excessive force against, falsely arrested and falsely imprisoned, and otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

18. That upon information and belief, prior to the events alleged herein the City and the NYPD knew that Williams and the other officers were unfit to act as police officers.

19. That despite the City's and the NYPD's prior knowledge of Williams' and the other officers' unfitness and propensities, the City and the NYPD knowingly retained Williams and the other officers, thereby subjecting A.B. to Williams' and the other officers' improper, illegal, and unconstitutional conduct.

20. That despite the City's and the NYPD's prior knowledge of Williams' and the other officers' unfitness and propensities, the City and the NYPD failed adequately to supervise and train Williams and the other officers, thereby subjecting A.B. to Williams' and the other officers' improper, illegal, and unconstitutional conduct.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Assault and Battery Under NY State Law)

21. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

22. That the aforesaid actions of the officers constitute an assault and battery of A.B., for which Williams and the other officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS

(False Arrest/False Imprisonment Under NY State Law)

23. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

24. That the aforesaid actions of the officers constitute a false arrest and false imprisonment A.B., for which Williams and the other officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST WILLIAMS AND THE OTHER OFFICERS

(42 U.S.C. § 1983: Illegal Seizure, Excessive Force, and False Arrest/Imprisonment)

25. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

26. That the aforesaid actions by Williams and the other officers in forcibly stopping, seizing, and using excessive force against A.B., and in falsely arresting and imprisoning A.B., constitute unreasonable and illegal seizures of A.B. in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FOURTH CAUSE OF ACTION AGAINST WILLIAMS AND THE OTHER OFFICERS
(42 USC § 1983: Failure to Intervene)

27. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

28. That the aforesaid actions by Williams and the other officers in willfully failing to intervene to stop and/or prevent the illegal and unconstitutional conduct of their fellow officer constitute violations of those same rights that were violated by their fellow officers, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION THE CITY
(Negligent Hiring, Training, Supervision, and Retention)

29. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

30. That the aforesaid actions by Williams and the other officers and the resulting injuries to A.B. followed and were the result of the negligence of the City in its hiring, training, supervision, and retention of Williams and the other officers.

SIXTH CAUSE OF ACTION THE CITY
(*Monell* Claim: Deliberate Indifference)

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

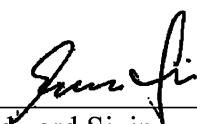
32. That the aforesaid actions by the Williams and the other officers and the resulting injuries to plaintiff followed and were the result of a deliberate indifference by the City and the NYPD to an ongoing pattern of conduct by Williams and the other officers in which Williams and the other officers violated the constitutional rights of citizens of the State of New York.

33. That by virtue of the foregoing, plaintiff is entitled to recover monetary damages from the City under 42 U.S.C. § 1983, pursuant to *Monell v. Dep't of Social Servs. Of N.Y.C.*, 436 U.S. 658.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action in the form of compensatory damages in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands punitive damages against Williams and the other officers in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorney's fees against defendants pursuant to 42 USC § 1988, and the costs and disbursements of this action.

Dated: New York, New York
July 20, 2020

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By 
Edward Sivin
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

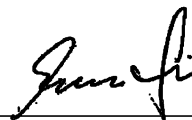
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
July 20, 2020



EDWARD SIVIN

Index No.

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COUNTY OF BRONX

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VICTORIA BUGGIE,

Plaintiff,

-against-

THE CITY OF NEW YORK, et ano.,

Defendants.

VERIFIED COMPLAINT

SIVIN, MILLER & ROCHE, LLP
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
July 20, 2020